

Proposed House Rules — Nā Hale O Makena

Association of Apartment Owners of Nā Hale O Makena · REVIEW DRAFT v2026-07-26A

REVIEW DRAFT — not adopted. Marker key:

AI-added pale-yellow block or badge = text proposed by AI rather than carried from the prior House Rules; where a provision mixes both, the badge names the added aspect.

Required by (green) = an outside authority mandates the rule. NHOM is an **AOAO** under HRS ch. 514B, **not an HOA**; HRS ch. 421J excludes condominiums and has been screened out.

REDUNDANT / **OVERLAP** / **CONFLICT** = relationship to the Unit Modification Policy (UMP), or an internal duplicate.

Citation flag = the provision's own source tag cites the wrong authority, or the rule carries a legal exposure. Flagged only — no text was changed.

(PS)/(SS) = Paul / Shannon comments from the SS-clean markup.

Status: Proposed revision — **not yet adopted.** Pending Board review, counsel review, and adoption by Board resolution. Until adopted, the operative rules remain the House Rules dated April 29, 2026.

Source references. Each provision carries a bracketed source tag for Board review: **Prior HR** (House Rules 2026.04.29 SS-clean), **Bylaws**, **Decl** (Declaration/CC&Rs), **HRS/HAR** (statute/regulation), **FCC** (over-the-air reception-device rule, 47 C.F.R. §1.4000), **Fire Code** (NFPA 1 as adopted under the Hawaii State Fire Code, HRS §132), **Robert Sutor Recommended**, or **AI recommended** (newly proposed to close a gap). *These tags are a review aid and should be stripped before adoption — except items tagged "Legal Confirmation Required," which flag matters awaiting counsel and should remain until resolved.*

1 Contact Info: General & Emergency

1.1 Purpose and How to Use These Rules

These Rules and Regulations ("House Rules") govern day-to-day use of the Project by owners, occupants, tenants, and guests. They are organized by property element and subject so that any provision can be cited precisely (for example, "House Rule 9.4"). The Owner Quick Reference handout uses these same section numbers. [AI recommended]

1.2 Authority to Make Rules

These House Rules are adopted by the Board of Directors of the Association of Apartment Owners of Nā Hale O Makena (the "Association") under the authority of the Declaration, the Bylaws, and HRS Chapter 514B. They govern the details of the operation and use of the Project and supplement, but do not replace, the Declaration and Bylaws. [Prior HR A.1; Bylaws §6.1; HRS §514B-104]

Citation flag — tag cites Bylaws §6.1 — the House Rules power is §6.4 (or §6.1(e))

1.3 Who to Call

Role	Contact
Life-safety emergency (fire, medical, crime)	Call 911 first , then notify the Resident Manager
Resident Manager	Molly Duncan · cell (808) 264-6256 · managernhom@hotmail.com · on-site office
Managing Agent	Destination Maui, Inc. · main office (808) 244-9021 · dmi@destinationmaui.net
Association Representative	Rena Tamura · direct office (808) 866-5979 · rena@destinationmaui.net
Association website	nhomaoao.com

[Prior HR A.2, A.10; Resident Manager cell added per Robert Sutor Recommended]

AI-added: Resident Manager cell added per

[Comment (PS): Please change to Rena's office landline number: (808) 866-5979.]

1.3.1 When to Call — Emergencies vs. Operational Issues

Life-safety emergencies — fire or smoke, a medical emergency, a crime in progress, or a person trapped or injured — **call 911 first**, then notify the Resident Manager.

Operational issues, during office hours or after hours — such as an **elevator not operating, a vehicle entry gate not operating**, or other building or utility failures — call the **Resident Manager at cell (808) 264-6256**; if the Resident Manager is unavailable, call the Managing Agent. A **person stuck in an elevator** should be reported to the Resident Manager immediately, and **if the person is in distress or cannot be released promptly, call 911**.

[Robert Sutor Recommended]

1.4 Binding Effect

These House Rules bind every owner, occupant, tenant, guest, invitee, employee, agent, and contractor present at the Project. Each owner must ensure that every person occupying or visiting the owner's apartment at the owner's invitation or authority complies with them. [Prior HR A.3; Bylaws §2.1]

Required by: Bylaws §2.2; §2.3

REDUNDANT vs UMP 1 — same owner-liability-for-contractors rule

Citation flag — tag cites Bylaws §2.1 — binding effect is §2.2 / §2.3

1.5 Owner Responsibility

An owner is responsible and liable for any violation by the owner's family, occupants, tenants, guests, invitees, agents, employees, and contractors, including all resulting fines, damage, and costs of

enforcement. [Prior HR A.4]

Required by: Bylaws §2.3; HRS §514B-104(c)

REDUNDANT vs UMP 1 — same owner-responsibility recital

1.6 Precedence of Governing Documents

In the event of a conflict, the order of precedence is: (a) applicable law; (b) the Declaration; (c) the Bylaws; (d) these House Rules; (e) Board-adopted policies. Any provision that conflicts with a superior document is deemed modified to the minimum extent necessary to conform. [Prior HR A.5; Decl ¶18]

Required by: Decl ¶18 (2007 Amend. ¶19); Bylaws §2.5

1.7 Limitation of Liability

Neither the Association, the Board, the Managing Agent, the Resident Manager, nor any employee or agent of any of them is liable for loss, damage, or injury to persons or property arising from use of the Project, except to the extent caused by their own gross negligence or willful misconduct. Use of all amenities is at the user's own risk. [Prior HR A.7]

1.8 Fair Housing Compliance

The Association complies with the federal Fair Housing Act, HRS Chapter 515, and Hawaii Administrative Rules Chapter 12-46. Any provision of these House Rules yields to the Association's obligation to grant reasonable accommodations and permit reasonable modifications for persons with disabilities. See Section 8.9 (Reasonable Modifications) and Section 16 (Support Animals). [Prior HR A.8; HRS Ch. 515; HAR §12-46-306; 42 U.S.C. §3604(f)]

Required by: 42 U.S.C. §3604(f)(3); HRS §515-3(a)(8)–(9)

1.9 Availability of These Rules

Current House Rules are provided to each owner, posted at the on-site office, and available on the Association website. An owner who leases an apartment must provide a copy to the tenant. See Section 3.7 (Leasing). [Prior HR A.9]

Required by: HRS §514B-154.5(a)(2),(c); Decl §8(a)

1.10 Complaints

Non-emergency complaints should be made in writing to the Resident Manager or Managing Agent. Anonymous complaints may be logged but will not ordinarily support a fine. [Prior HR A.10; AI recommended]

AI-added

1.11 No Direction of Employees or Vendors

Owners, occupants, and guests must not direct, instruct, or interfere with Association employees, the Resident Manager, or Association vendors and contractors. All requests go through the Resident Manager

or Managing Agent. See Section 17 (Association Staff & Vendors). [Prior HR A.11]

1.12 Owner Contact Information

Each owner must keep on file with the Managing Agent a current mailing address, telephone number, and email address, and a 24-hour emergency contact. Notices sent to the address last on file are effective whether or not actually received. Owners must notify the Managing Agent of a sale or transfer within ten (10) days. [AI recommended]

Required by: Bylaws §10.9

1.13 Amendment

These House Rules may be amended by the Board at a duly noticed meeting. Owners will be given notice of amendments, which take effect on the date stated by the Board. [Prior HR A.12; Bylaws §6.3]

Citation flag — tag cites Bylaws §6.3 (Renting or Selling by Association Employees) — amendment power is §6.4; no owner-notice duty exists in the Bylaws

2 Definitions

2.1 Defined Terms

Act — HRS Chapter 514B, as amended.

Apartment / Unit — a unit as defined in the Declaration.

Association — the Association of Apartment Owners of Na Hale O Makena.

Board — the Board of Directors of the Association.

Cabana — the Recreation Cabana and its adjoining lanai and deck area, referred to historically as the Pavilion. See Section 10 (Cabana).

Common Elements — as defined in the Declaration, excluding limited common elements.

Guest — a person present at the Project at the invitation of an owner or occupant who is not occupying an apartment overnight.

Limited Common Elements — as defined in the Declaration, including assigned covered parking stalls and lanais.

Managing Agent — the managing agent engaged by the Board.

Occupant — any person occupying an apartment, including an owner in residence, a tenant, and any overnight guest.

Owner — a record owner of an apartment.

Project — Na Hale O Makena, 4955 Makena Road, Makena, Maui, Hawaii.

Resident Manager — the on-site resident manager employed by the Association.

Support Animal — an animal that qualifies as a service animal, assistance animal, comfort animal, or emotional support animal under the federal Fair Housing Act, HRS Chapter 515, or Hawaii Administrative Rules § 12-46-306. The term is used throughout these House Rules as a single defined term encompassing that entire statutory category, and is not limited to emotional support animals. See Section 16 (Support Animals).

[Prior HR B.1; Support Animal definition per Robert Sutor Recommended, statutory category preserved]

AI-added: Support Animal definition per , statutory category preserved

Required by: HRS §515-3(b); HAR §12-46-306(a)(1)

[Comment (PS): Perhaps I am not understanding this term and its definition.]

2.2 Undefined Terms

Terms not defined here have the meaning given in the Declaration, the Bylaws, or the Act. [Prior HR B.2]

3 Occupancy & Use of Apartments

3.1 Compliance with Law

Apartments must be used in compliance with all applicable federal, state, and county laws, ordinances, and regulations. [Prior HR C.1]

REDUNDANT vs UMP 11 — same compliance-with-laws rule; UMP 11 is surplus

3.2 Residential Use Only

Apartments may be used only for residential purposes. No trade, business, profession, commercial enterprise, or manufacturing may be conducted in or from an apartment or anywhere on the Project. A home office producing no client traffic, employees, signage, or deliveries beyond ordinary residential volume is not a violation of this rule. [Prior HR C.5; Decl ¶8; AI recommended (home-office clarification)]

AI-added: home-office clarification

Required by: Decl §8(a) (2009 Amend.)

3.3 Minimum Rental Period; No Timesharing

No apartment may be rented, leased, or otherwise made available for occupancy for a term of less than **one hundred eighty (180) consecutive days**. Timesharing, interval ownership, vacation-club, and rotating-occupancy arrangements are prohibited. [Prior HR C.6; Decl §8(a) as amended 2009]

Required by: Decl §8(a), 2nd Amend. rec. 2009-03-05

3.4 Rental Enforcement

To enforce Section 3.3 (Minimum Rental Period; No Timesharing), the Association may require, and the owner must provide within ten (10) days of written request: a copy of the executed lease showing the term, with rent amounts redacted at the owner's option; the names of all occupants; and a written statement identifying every platform or service on which the apartment has been advertised in the preceding twelve months. [AI recommended]

Required by: Decl §8(a) (2009 Amend.)

3.4.1 Advertising as Evidence

Advertising, listing, or offering an apartment for occupancy of fewer than 180 days — on any platform, in any medium — creates a rebuttable presumption of violation of Section 3.3 (Minimum Rental Period; No Timesharing), whether or not a booking occurs. [AI recommended]

3.4.2 Owner Cooperation

Failure to provide the documents required by Section 3.4 (Rental Enforcement) within the time allowed is itself a violation subject to fine, independent of any underlying rental violation. [AI recommended]

3.5 Occupancy Limits

Overnight occupancy may not exceed two (2) persons per bedroom plus two (2) additional persons per apartment, except for children under the age of two and except as required by fair housing law. [AI recommended]

Citation flag — FAIR-HOUSING EXPOSURE: a two-persons-per-bedroom cap is presumptively unlawful familial-status discrimination under HAR §12-46-307(3) absent proven business necessity

3.6 Absent Owners; On-Island Representative

An owner who will be absent from Maui for more than thirty (30) days must file with the Resident Manager the owner's contact address, telephone, and email, and the name, address, and telephone of an on-island representative authorized to act in an emergency and to admit the Association for access permitted under Section 8.2 (Access to Apartments). [Prior HR C.4, C.7]

[Comment (PS): I found this language in a newsletter to the owners sent in October 2017.]

3.7 Leasing

3.7.1 Rules Delivered to Tenant

An owner who leases an apartment must deliver a current copy of the Declaration, Bylaws, and House Rules to the tenant before occupancy. [Prior HR C.7]

Required by: Decl §8(a) (2009 Amend.)

3.7.2 Lease Addendum

Every lease must include, or be accompanied by, a signed addendum in which the tenant acknowledges receipt of the House Rules and agrees to be bound by them. A copy must be filed with the Resident Manager before occupancy. [AI recommended]

3.7.3 Filing

The owner must file with the Resident Manager, before occupancy, the tenant's name, the lease commencement and expiration dates, and the tenant's telephone and email. [Prior HR C.7; AI recommended (detail)]

AI-added: detail

Required by: Decl §8(a) (2009 Amend.)

3.7.4 Owner Remains Responsible

Leasing does not relieve an owner of responsibility under Section 1.5 (Owner Responsibility). [Prior HR C.7]

Required by: Bylaws §2.3; HRS §514B-104(c)

4 Guests

4.1 Registration

An owner must register guests through the form on the Association website when any guest occupies the apartment without the owner simultaneously in residence. Registration must be submitted **before arrival** and must state the guest names, arrival and departure dates, and a contact telephone number.

[Prior HR C.2; AI recommended (timing and content)]

AI-added: timing and content

4.2 Length of Guest Stays

A guest occupying an apartment without the owner in residence for more than thirty (30) consecutive days, or more than sixty (60) days in any twelve-month period, is deemed a tenant and the occupancy is subject to Section 3.3 (Minimum Rental Period; No Timesharing). [AI recommended]

4.3 Guest Conduct and Amenity Access

Guests are subject to these House Rules. The owner or occupant is responsible for the conduct of guests. Amenity access and guest limits are stated in Section 9 (Pool & Jacuzzi), Section 10 (Cabana), and Section 11 (Gym). [Prior HR C.3, D.3]

5 Conduct

5.1 Nuisance

No owner, occupant, or guest may create or permit any nuisance, or any activity that unreasonably interferes with the peaceful use and enjoyment of the Project by others. [Prior HR D.1; Decl ¶8]

[Comment (PS): I like the language in the 2017 version re: nuisance and disturbances and ejection. OK to add?]

5.2 Noise and Quiet Hours

Noise must be kept at a level that does not disturb others at any time. [Prior HR D.2]

OVERLAP vs UMP 4.3(12) — UMP imposes a stricter work-site bar on outdoor radio/music

5.2.1 Quiet Hours

Quiet hours are 9:00 p.m. to 8:00 a.m. daily. During quiet hours, no sound from an apartment, lanai, or common element may be plainly audible inside another apartment with its doors and windows closed. [AI recommended]

5.2.2 Amplified Sound

Amplified music and sound systems used outdoors or on lanais must not be audible beyond the boundary of the apartment or its lanai. Subwoofers and speakers must not be placed in contact with floors, ceilings, or party walls. [AI recommended]

5.2.3 Floor Coverings

Hard-surface flooring installed above the ground floor must be installed over an acoustic underlayment meeting the standard set by the Board under Section 18.1 (Board Approval Required). [AI recommended]

CONFLICT vs UMP 2.2 — this rule permits hard surface over underlayment; Bylaws §8.3(g) as amended 2001 permits only carpet-for-carpet above the ground floor

5.3 Objectionable Odors

No odor may be permitted to emanate from an apartment or lanai that is offensive or noxious to others, including smoke, cooking odors, and animal odors. [Prior HR D.4]

5.4 Unlawful and Prohibited Conduct

No unlawful, offensive, threatening, or harassing conduct is permitted anywhere on the Project, including toward Association employees, Board members, vendors, and other residents. [Prior HR D.6]

5.5 Activity Affecting Insurance

No activity is permitted that increases the Association's insurance premium, causes cancellation, or violates a condition of coverage. [Prior HR D.7, E.14]

REDUNDANT vs UMP 6.2 — same insurance-cancellation/increase rule

5.6 Solicitation

Door-to-door solicitation, canvassing, and distribution of commercial materials are prohibited. This does not restrict communications among owners regarding Association governance. [Prior HR D.8; AI recommended (governance carve-out)]

AI-added: governance carve-out

5.7 Drones

Operating an unmanned aircraft (drone) from, over, or on the Project is prohibited without prior written Board approval, except as required by law. Drones may not be used to observe or record any apartment, lanai, or person. [AI recommended]

5.8 Security Cameras

5.8.1 Association Cameras

The Association may install cameras on common elements for security purposes. Signage will disclose their presence. Recordings are Association records; access is governed by Section 20.7 (Records Requests) and applicable law. [AI recommended]

5.8.2 Owner Cameras

Owner-installed cameras and video doorbells must not be aimed so as to record the interior of another apartment or lanai, or to conduct continuous surveillance of a common element. Installation that penetrates or attaches to a common element requires Board approval under Section 18.1 (Board Approval Required). [AI recommended]

6 Smoking

6.1 Definition

"Smoking" means inhaling, exhaling, burning, carrying, or possessing any lighted or heated tobacco product, cannabis, or other plant product, and includes the use of electronic smoking devices, vaporizers, vape pens, and hookahs. [Prior HR D.12]

6.2 Where Prohibited

Smoking is prohibited on all common elements and limited common elements, including the pool and jacuzzi area, the Cabana and its lanai, the gym, walkways, stairwells, parking areas, and landscaped areas. [Prior HR D.12; AI recommended (enumeration)]

AI-added: enumeration

[Comment (SS): Has the Association owners or Board adopted any non-smoking areas?]

[Comment (PS): No, and don't plan to at this time.]

[Comment (SS): By law, the Board should prohibit smoking in the common elements.]

[Comment (PS): Noted.]

6.3 Lanais

Smoking is prohibited on lanais where the smoke migrates into another apartment or onto another lanai. Repeated migration constitutes a nuisance under Section 5.1 (Nuisance). [\[AI recommended\]](#)

6.4 Disposal

Smoking materials must be extinguished and disposed of in designated receptacles. Discarding any lighted material anywhere on the Project is prohibited and is subject to Section 20.3(f) (Fines). [\[AI recommended\]](#)

6.5 Accommodation

Nothing in this section prevents an owner or occupant from requesting a reasonable accommodation under Section 1.8 (Fair Housing Compliance). [\[AI recommended\]](#)

Required by: 42 U.S.C. §3604(f)(3)(B); HRS §515-3(a)(9)

7 Grills & Fire Safety

7.1 Gas Grilling on Lanais

Gas (propane) barbecue grilling is permitted on an owner's lanai **only where the building and the lanai are protected by an approved automatic sprinkler system** — the condition the State Fire Code sets for cooking on the balconies/lanais of a multi-unit building (NFPA 1 (2024) §10.11.7, as adopted by the Hawaii State Fire Code). NHOM's buildings are fire-sprinklered.

Charcoal grilling, open fires, and any other open-flame cooking are prohibited on lanais and anywhere on the common elements.

A grill in use must be **attended at all times**, kept clear of railings, walls, furniture, and any combustible material, and must not be operated where heat or grease can damage the structure above.

Ventilation and smoke. Any grill exhaust fan must be **fully operable and switched on for the entire time the grill is in use** — the **high setting is recommended**. **Smoke must not be allowed to enter another apartment**, whether above the grill or on the same level; if smoke is reaching a neighbor, stop using the grill until the problem is corrected. [\[NFPA 1 \(2024\) §10.11.7 as adopted by the Hawaii State Fire Code \(HRS §132-3\); ventilation and smoke-migration — Robert Sutor Recommended\]](#)

[Legal Confirmation Required: the Resident Manager is to confirm that the building's automatic sprinkler protection extends to the lanais/decks, and to confirm the current Maui-adopted fire-code edition with the Maui Fire Prevention Bureau. Grilling on a lanai is lawful only where that sprinkler coverage is present.]

AI-added: ventilation and smoke-migration

Required by: HI State Fire Code (NFPA 1 §10.11.7) per HRS §132-3; §132-8

7.2 Where Grilling Is Permitted

Grilling is permitted on an owner's own lanai under Section 7.1 (Gas Grilling on Lanais), at any grills provided by the Association, and at locations the Board designates. NHOM's lanai grills are served by a **centralized piped LP-gas system supplied from an exterior tank**; there are no individual propane cylinders on the lanais or in the cabinets. [AI recommended; centralized LP-gas system per Association]

7.3 Propane Safety — Leak and Explosion Hazard

Warning. The propane manifold, hoses, regulator, and fittings on a gas barbecue can develop leaks. **Propane is heavier than air.** Escaping gas therefore does **not** rise and vent upward through the grill — it **sinks and collects in the bottom of the enclosed cabinet beneath the grill**, where it can accumulate unnoticed. If the grill is then ignited while gas has built up in that cabinet, the result can be an explosion. Explosions of this kind cause serious burn injuries.

Anyone using a gas barbecue must take these precautions:

- **Have the grill and its gas connection inspected periodically for leaks**, including the manifold, hoses, regulator, and fittings.
- **Keep the gas shutoff valve at the grill connection accessible and operable, and shut it off when the grill is not in use.**
- **If the grill has been unused for a period, open the cabinet doors before igniting it** and check for the smell of propane. If you detect propane, do **not** ignite the grill — shut off the gas shutoff valve at the grill connection, leave the doors open until the odor clears, and have the grill inspected before further use.

[Robert Sutor Recommended]

7.4 Open Flame

Fire pits, tiki torches, chimineas, and unattended candles are prohibited on lanais and common elements. [AI recommended]

Required by: HI State Fire Code per HRS §132-3; §132-8

7.5 Fireworks

Fireworks of any kind are prohibited anywhere on the Project. [Prior HR D.5, D.6]

7.6 In-Unit Smoke and Carbon-Monoxide Alarms

Each owner and occupant must keep the **smoke alarms and carbon-monoxide alarms within their apartment in operable condition at all times** — with fresh batteries or battery backup as applicable — test them regularly, and replace each alarm at the end of its service life. Because the apartments are served by **pipéd LP-gas appliances**, a working **carbon-monoxide alarm** is required. This is a Board-adopted requirement, supported by the owner's general fire-safety duty under HRS §132-8 and the adopted fire code; it is the owner's responsibility for the alarms *within the unit* and does not affect the Association's responsibility for the building's common fire-protection systems. [HRS §132-8 (owner fire-safety duty); Hawaii State Fire Code (NFPA 1 2024 referencing NFPA 72) as adopted under HRS §132-3; Board-adopted requirement]

Required by: HRS §132-8(a),(b)

8 Your Apartment, Windows & Lanais

8.1 Keys and Access Credentials

8.1.1 Keys

An owner may, but is not required to, deposit a key with the Resident Manager for emergency access. Deposit is at the owner's risk and requires a signed release. [Prior HR E.1]

8.1.2 Emergency Entry

If the Association must enter an apartment in an emergency and has no key, the cost of forcible entry and repair is the owner's expense. [Prior HR E.1]

8.1.3 Access Credentials

Gate codes, fobs, and access cards are issued to owners and registered occupants only and may not be duplicated, shared, sold, or posted. Owners must report lost credentials immediately and must recover credentials from departing tenants. Replacement fees are set by the Board. [AI recommended]

8.1.4 Lockboxes

Realtor and contractor lockboxes may be placed only at locations designated by the Resident Manager and must be removed within ten (10) days of closing or completion. [AI recommended]

8.2 Access to Apartments

The Association may enter an apartment or its limited common elements without notice in an emergency, and otherwise on reasonable advance notice for inspection, maintenance, or repair for which the Association is responsible, or to investigate a suspected violation or suspected leak. [Prior HR E.2; Bylaws §8.4]

Required by: Bylaws §10.1; Decl §6(c)

Citation flag — tag cites Bylaws §8.4 (Alteration of the Project) — right of access is §10.1

8.3 Windows

8.3.1 Window Tinting Prohibited

Window tinting and applied window films are not permitted. [Robert Sutor Recommended — replaces the prior approval-based rule at Prior HR E.7]

AI-added: replaces the prior approval-based rule at Prior HR E.7

8.3.2 Window Treatments

Curtains, blinds, shades, shutters, and any other window treatment visible from outside an apartment must be consistent with the appearance and residential character of the Project. Bed sheets, foil, cardboard, paper, plastic, flags, and signage may not be used as window coverings. The Board may require removal or replacement of a treatment inconsistent with this rule. [Robert Sutor Recommended]

8.3.3 Cleanliness

Windows and screens must be kept clean and in good repair. [Prior HR E.12]

[Comment (PS): We have a practice at NHOM where the AOA engages and pays for window cleaning every four months. Cleaning window screens are the owners' responsibility. Perhaps we leave this rule language as is in case the AOA ceases its involvement.]

[Comment (SS): Agree.]

8.4 Awnings, Projections and Reception Devices

8.4.1 Projections

No awning, canopy, shutter, air conditioner, or other device may project through or beyond the exterior face of a building, except as permitted by Section 8.4.2 (Antennas and Reception Devices) or approved under Section 18.1 (Board Approval Required). [Prior HR E.8, E.9, Maintenance ¶4 [verify]]

Required by: Bylaws §8.3(a); §8.3(b)

8.4.2 Antennas and Reception Devices

The Association will not prohibit installation of a reception device protected by the Federal Communications Commission's Over-the-Air Reception Devices rule within an area of an owner's exclusive use or control. Such installations must, to the extent permitted by that rule: be located in the least visible place that permits acceptable signal; not project beyond the lanai railing; be secured against wind; not penetrate common element structure without approval under Section 18.1 (Board Approval Required); and be removed and the area restored when no longer in use. All other antennas and dishes are prohibited on common and limited common elements. [Prior HR Maintenance ¶5 [verify]; FCC OTARD rule, 47 C.F.R. §1.4000]

Required by: 47 C.F.R. §1.4000(a)(1),(g)

8.5 Nameplates and Doormats

Nameplates may be displayed only in the location, size, and style approved by the Board. Doormats not exceeding 5' × 7' are permitted outside apartment doors; they must be in good repair, harmonious in color and style, and must not display names or messages. [Prior HR E.5, F.10]

8.6 Lanais

8.6.1 Care

Lanais must be kept clean, orderly, and free of stains and debris. Cleaning must not discharge water, soil, or cleaning agents onto another lanai, walkway, or landscaping. [Prior HR E.11]

8.6.2 Permitted Items

Only outdoor furniture, potted plants, and similar patio items in good condition are permitted. Plants must sit in saucers that prevent drainage onto surfaces below. [Prior HR E.11]

8.6.3 Prohibited Items

No storage of bicycles, surfboards, boxes, appliances, tools, or household items; no laundry, towels, or swimwear hung on railings or in view; nothing may be attached to railings or the building without approval; nothing may be shaken, swept, poured, or thrown from a lanai. [Prior HR E.11]

CONFLICT vs UMP 9 — flat no-storage bar here; UMP authorizes construction staging on written RM approval

8.6.4 Decorations

Seasonal and holiday decorations are permitted on lanais and apartment entry doors from **November 15 through January 15**, and for not more than fourteen (14) days surrounding any other cultural or religious observance. Decorations must be LED or low-heat, must not be affixed to common elements in a manner causing damage, must not produce sound or animation audible or visible to neighbors during quiet hours, and must be removed promptly at the end of the permitted period. This rule is applied without regard to the religion or culture observed. [Prior HR E.11; AI recommended (religion-neutral scope — the prior rule was December-specific)]

AI-added: religion-neutral scope — the prior rule was December-specific

8.6.5 Storm Preparation

Upon issuance of a tropical storm or hurricane watch for Maui, occupants must remove or secure all furniture, plants, decorations, and loose items from lanais. If the apartment is unoccupied, the owner's on-island representative under Section 3.6 (Absent Owners; On-Island Representative) is responsible. The Association may secure or remove items at the owner's expense if not addressed. [AI recommended]

8.7 Plumbing and Water Apparatus

Toilets, sinks, drains, and water apparatus may be used only for their intended purposes. The cost of repairing damage from misuse is charged to the responsible owner. [Prior HR E.4]

8.8 Maintenance, Loading and Risk

Owners must maintain their apartments, fixtures, and equipment in good condition and repair so as not to affect other apartments or the common elements. No apartment or lanai may be loaded beyond its design capacity or altered so as to impair structural integrity. Owners and occupants assume all risk of loss to personal property within apartments and limited common elements. Water beds, spas, and hot tubs require prior written Board approval and evidence of insurance. [Prior HR E.3, E.10, E.13, E.14]

Required by: Decl §5.4

8.9 Reasonable Modifications

An owner or occupant with a disability may request a reasonable modification to an apartment or common element at the requester's expense. Requests are made in writing to the Resident Manager. The Board will not unreasonably withhold or delay consent, and a request is deemed granted if not denied in writing within forty-five (45) days. [Bylaws §8.5; Decl ¶9; 24 C.F.R. §100.203]

Required by: Bylaws §8.5; 24 C.F.R. §100.203

REDUNDANT vs UMP 2.2 — same Bylaws §8.5 45-day deemed-granted rule stated in both

8.10 Maintenance Responsibilities — Owner vs. Association

This table summarizes, in plain language, which components an **Owner** maintains, repairs, and replaces, and which the **Association (AOAO)** does. **It is a summary only and yields to the Declaration and Bylaws** in any conflict — the allocation is fixed by those documents (Declaration apartment boundaries §4.3 and Common-Element provisions §5.1–5.4; Bylaws Article VIII). Where the governing documents clearly assign a component, that controls; **any component the documents do not clearly assign defaults to the Association and is tagged "Legal Confirmation Required"** pending counsel review and, where needed, a governing-document amendment.

Component	Responsible	Authority	Note
Apartment interior — walls, floors, ceilings, fixtures, appliances	Owner	Decl. §5.4; §4.3(e)	Association <i>insures</i> (not maintains) under Decl. §12
Plumbing, wiring, heat pumps serving only the unit *	Owner	Decl. §4.3(e)(vi)	Owner from the tie-in inward — see note below
Owner-applied lanai floor covering	Owner	Decl. §5.4	The slab surface itself is the Association's
Air-conditioning serving only the unit	Owner	Decl. §4.3(e)(v), (vi); Bylaws §8.3(b)	Exterior-mounted install needs Board approval
Lanai finished floor surface (slab)	Association	Decl. §5.4; §4.3(f)(e)	Common element
Lanai structure, supports	Association	Decl. §5.1(c); §4.3(f)	Load-bearing / structural = common element

Component	Responsible	Authority	Note
Lanai railings	Association	Decl. §5.1(e); §5.4	Common element
Building exterior; exterior components of perimeter walls	Association	Decl. §4.3(f)(a); §5.4	—
Pipes / wires / conduits serving more than one unit *	Association	Decl. §4.3(f)(d); §5.1	The shared line/main; even where it runs through a unit
Limited common elements — parking stall, storage locker, mailbox (ordinary upkeep)	Association (common expense)	Decl. §5.2, §5.3(b)	See LCE note below
Window glass — repair / replacement	Association	<i>default</i>	Legal Confirmation Required
Window screens	Association	<i>default</i>	Legal Confirmation Required
Window / door caulking and exterior sealant	Association	<i>default</i>	Legal Confirmation Required
Exterior faces of windows and doors	Association	<i>default</i>	Legal Confirmation Required
Exterior door finish	Association	<i>default</i>	Legal Confirmation Required
Lanai underside / soffit finish	Association	<i>default</i>	Legal Confirmation Required

- **Piping and wiring — where the owner's responsibility ends.** An owner is responsible for any water, gas, drain, condensate/effluent, or electrical line that **serves only their apartment** — from within the unit back to the point where it ties into a line or main that serves **more than one unit** (the primary building source). For a **first-floor apartment this includes under-slab piping** that serves only that unit. From the shared line or main **outward**, the **Association** is responsible. The exact connection fitting or shutoff valve **at the tie-in** is **Legal Confirmation Required**.

[Declaration §4.3(e)(vi), §4.3(f)(d); Robert Sutor Recommended]

Window and door *assemblies* are part of the apartment (Decl. §4.3(e)(iv)), but the documents do not expressly assign *maintenance* of the glass, screens, caulking, or exterior faces — so those default to the Association pending confirmation. **LCE note:** Declaration §5.3(b) treats limited-common-element upkeep as a **common expense**, while Bylaws §8.4(c) charges LCE *alterations/repairs* to the appurtenant owner; this apparent conflict is **Legal Confirmation Required**. [Declaration §4.3, §5.1–5.4, §12; Bylaws Article VIII; unassigned-defaults-to-Association allocation rule per Robert Sutor Recommended]

AI-added

Required by: Decl §4.3, §5.1–5.4; Bylaws Art. VIII

Citation flag — the “Legal Confirmation Required” LCE tag is resolvable as written: Bylaws §8.4(c) charges LCE work to the owner but Decl §5.3(b) makes it a common expense, and under Bylaws §2.5 the Declaration controls

9 Pool & Jacuzzi

All pool and jacuzzi rules are consolidated in this section. [Robert Sutor Recommended]

9.1 No Lifeguard

There is no lifeguard on duty. All use is at the user's own risk. The Association is not responsible for injury or loss arising from use, misuse, or misconduct. [Prior HR F.8]

9.2 Hours

Pool and jacuzzi hours are **6:00 a.m. to 9:00 p.m. daily**. The hours of 6:00 a.m. to 9:00 a.m. are reserved for lap swimming. [Prior HR F.8]

9.3 Who May Use

Use is limited to owners and occupants and their accompanying guests. **An owner or occupant may bring up to four (4) guests at one time** and must accompany them throughout their use of the pool area. [Prior HR F.8; AI recommended (guest limit — the prior rule had none)]

AI-added: guest limit — the prior rule had none

9.4 Children and Swimming Ability

Children under **fourteen (14)** years of age must be accompanied and directly supervised by a responsible person eighteen (18) or older. Any person who is not a competent swimmer must be supervised within arm's reach by a competent swimmer. [Prior HR F.8; AI recommended (minimum age)]

AI-added: minimum age

9.5 Health and Hygiene

All users must shower before entering. Persons who are incontinent, including infants and toddlers, must wear waterproof swim pants. Persons with an infectious or communicable condition, open sores, or bandaged wounds may not enter the water. Spitting, spouting water, and nose-blowing in the water are prohibited. [Prior HR F.8]

9.6 Glass and Food

Glass and other breakable containers are prohibited in the pool and jacuzzi area. Food is permitted only in the designated table area and must be cleaned up immediately. [Prior HR F.8; AI recommended (food)]

AI-added: food

9.7 Conduct

No running, diving, horseplay, rough play, or excessive noise. Audio devices require headphones. [Prior HR F.8]

9.8 Equipment and Toys

Water toys, floats, rafts, snorkels, and scuba gear are prohibited. Flotation devices worn by a child for safety are permitted. [Prior HR F.8]

9.9 Pool Furniture

Pool furniture may not be reserved by leaving belongings unattended, and may not be removed from the pool area without the Resident Manager's approval. [Prior HR F.8]

9.10 Jacuzzi Health Notice

Pregnant women, persons with heart conditions or high or low blood pressure, and persons taking medication should consult a physician before use. Continuous immersion should not exceed fifteen (15) minutes. Children under five (5) may not use the jacuzzi. [AI recommended]

9.11 Gates and Closure

Safety gates must never be propped open. The Resident Manager may close the pool or jacuzzi for maintenance, weather, water quality, or safety. [AI recommended]

9.12 Smoking and Animals

Smoking is prohibited in the pool area (see Section 6.2 (Where Prohibited)). No animal may enter the pool or jacuzzi water; Support Animals otherwise accompany their handlers as provided in Section 16 (Support Animals). [AI recommended]

Required by: 24 C.F.R. §100.204; HAR §12-46-306(a)(3)

10 Cabana

The Cabana (historically called the Pavilion) and its lanai and deck are available to all owners and occupants on an unreserved basis except when reserved under this section. [Prior HR F.9]

10.1 Who May Reserve

An owner in good standing may reserve the Cabana for a personal social function at which **the owner will be present**. A reservation is required for any function of **twelve (12) or more persons**. An owner may hold **one reservation per apartment per calendar month**. [Prior HR F.9.1]

10.2 How to Reserve

Reservations are made in writing with the Resident Manager on the Association's reservation form, not less than **fourteen (14) days** in advance, and are subject to the Resident Manager's approval. Reservations by a community association or non-commercial organization require Board approval. **No reservations on major holidays**. [Prior HR F.9.1; AI recommended (written form, lead time)]

AI-added: written form, lead time

10.3 Capacity and Hours

Maximum occupancy is the lesser of the posted fire-code capacity or **forty (40) persons**. Reserved functions must end by **9:00 p.m.**, and all cleanup must be complete by **10:00 p.m.** [AI recommended — the prior rule had no capacity limit and no end time]

Required by: HI State Fire Code per HRS §132-3

10.4 Deposit and Charges

A refundable **cleaning and repair deposit of \$250** is payable to the Resident Manager at least seven (7) days in advance. The deposit is refunded within two (2) business days after the Resident Manager's inspection. **If damage or cleaning cost exceeds the deposit, the excess is charged to the owner's account** under Section 20.2 (Owner Liability for Damage). [Prior HR F.9.2 (\$100 deposit); AI recommended (amount increased; overage chargeable)]

AI-added: amount increased; overage chargeable

10.5 What a Reservation Does and Does Not Include

A reservation covers the Cabana, its lanai, and deck. **It does not close the pool or jacuzzi**, which remain available to all residents, unless the Resident Manager or Board determines in advance that closure is warranted by the size or nature of the function. [Prior HR F.9.1; AI recommended (clarification)]

AI-added: clarification

10.6 Alcohol

Alcohol may be served only to persons of legal drinking age and only to invited guests. Alcohol may not be sold, and no admission or donation may be charged. The reserving owner is solely responsible for compliance with all laws relating to alcohol and assumes all liability arising from its service. [AI recommended — the prior rules were silent on alcohol]

10.7 Amplified Music, Tents and Caterers

Amplified music requires the Resident Manager's advance approval and must comply with Section 5.2 (Noise and Quiet Hours). Tents, stages, inflatables, and open-flame catering equipment require advance written approval. Caterers and rental vendors must be scheduled with the Resident Manager. [AI recommended]

10.8 Parking for Functions

The reserving owner must advise guests of Section 13 (Parking & Vehicles) and is responsible for guest parking compliance. Functions expected to draw more than ten (10) vehicles require a parking plan approved in advance by the Resident Manager. [AI recommended]

10.9 Cleanup

Immediately following the function the reserving owner must: restore furniture to the configuration shown in the Resident Manager's diagram; remove all food and beverages; wipe tables and counters; sweep the lanai; clean the pool deck area if used; remove all decorations; and remove all trash and rental equipment from the Project. Rental equipment must be removed no later than the following morning.

[Prior HR F.9.3]

10.10 Indemnity

The reserving owner indemnifies, defends, and holds harmless the Association, the Board, the Managing Agent, and the Resident Manager against all claims, damages, and costs, including attorneys' fees, arising from the reserved function. [AI recommended]

10.11 Cancellation

Cancellation with less than forty-eight (48) hours' notice may forfeit fifty dollars (\$50) of the deposit at the Board's discretion. A no-show without notice forfeits the deposit. [AI recommended]

11 Gym

11.1 Use at Own Risk

Use of the gym and all equipment is at the user's own risk. Users should consult a physician before beginning any exercise program. The Association is not responsible for injury arising from use of the gym or its equipment. [AI recommended — the prior rules had no gym disclaimer while the pool did]

11.2 Hours

5:30 a.m. to 9:00 p.m. daily. [Prior HR F.7]

11.3 Who May Use

Use is limited to owners and occupants and their accompanying guests. **An owner or occupant may bring up to two (2) guests at one time** and must remain present with them. [Prior HR F.7; AI recommended (corrects the prior guests-of-guests drafting error)]

AI-added: corrects the prior guests-of-guests drafting error

11.4 Age

Persons under **fourteen (14)** may not use the equipment. Persons fourteen through seventeen may use equipment only with an accompanying adult eighteen or older. [Prior HR F.7]

11.5 Equipment Etiquette

Equipment is limited to **thirty (30) minutes** per machine when others are waiting. Users must wipe down equipment after use with the supplies provided, return weights to racks, and report damage or malfunction to the Resident Manager immediately. [Prior HR F.7; AI recommended (wipe-down, re-racking)]

AI-added: wipe-down, re-racking

11.6 Prohibited

No food, no glass containers, no dropping or slamming weights, no personal appliances, no removal of equipment, and no audio without headphones. Commercial personal-training sessions are prohibited without prior Board approval. [Prior HR F.7; AI recommended]

AI-added

11.7 Footwear

Clean, closed-toe athletic shoes must be worn while using the gym and its equipment. Bare feet, sandals, and open-toe footwear are not permitted. [Prior HR F.7 — prior footwear requirement retained as a safety rule; general attire rules removed]

11.8 Violations

Users violating these rules may be required to leave immediately. [Prior HR F.7]

12 Common Areas & Grounds

12.1 General Use

Common elements may be used only for their intended purposes. Climbing on, altering, removing, or tampering with any common element — including landscaping, irrigation, lighting, and Association furniture — is prohibited without prior written Board approval. [Prior HR F.4, F.5]

12.2 Passageways and Access

Driveways, roadways, walkways, stairwells, and entries must be kept clear at all times. Personal property left in these areas may be removed at the owner's risk and expense. Bicycles, skateboards, scooters, mopeds, and motorcycles may not be ridden on walkways. [Prior HR F.1]

12.2.1 Fire Egress — Keep Exits Clear

Common stairways, corridors, breezeways, and exit paths are **means of egress** and must be kept **continuously free of all obstructions and available for immediate use**. No storage, furniture, mats (beyond a permitted doormat), or personal items may block or narrow them, even temporarily. This is required by the adopted State Fire Code and is in addition to the no-storage rule in Section 12.3 (No Storage on Common Elements). [NFPA 1 (2024) §14.4 and the Hawaii State Amendments, as adopted by the Hawaii State Fire Code (HRS §132-3); HRS §132-8]

Required by: HI State Fire Code (NFPA 1 ch. 14) per HRS §132-3; §132-8

12.3 No Storage on Common Elements

No personal property may be stored or left on any common element, including lobbies, stairwells, walkways, and landscaped areas. The Association may remove property left in violation as provided by the Act. [Prior HR F.3; HRS Ch. 514B]

REDUNDANT vs UMP 4.3(2),(9) — same no-storage-on-common-elements rule

Citation flag — no HRS ch. 514B section authorizes an association to remove or impound personal property from common elements — “as provided by the Act” is unsupported

12.3.1 Bicycles and Beach Equipment

Bicycles, surfboards, and beach equipment must be stored inside the owner's apartment, or in a storage area the Board designates for that purpose if one is provided. Storage on lanais is governed by Section 8.6.3 (Prohibited Items). [AI recommended — the prior rules banned storage everywhere without providing an alternative]

12.4 Signs

No sign, notice, advertisement, or banner may be placed on any common element or displayed so as to be visible from outside an apartment, except (a) notices posted by the Association, (b) nameplates permitted under Section 8.5 (Nameplates and Doormats), (c) one temporary "For Sale" or "For Rent" sign if and where the Board designates, and (d) as required by law. [Prior HR F.2, Maintenance ¶3 [verify]; AI recommended (resolves the prior three-way inconsistency)]

AI-added: resolves the prior three-way inconsistency

12.5 Association Furniture

Furniture and equipment provided by the Association may not be removed from its designated area, altered, or reserved for private use except under 10. [Prior HR F.6]

12.6 Damage to Common Elements

Damage to any common element caused by an owner, occupant, guest, or contractor is charged to the responsible owner under Section 20.2 (Owner Liability for Damage). [Prior HR F.11]

REDUNDANT vs UMP 8 — same owner-liability-for-damage rule

13 Parking & Vehicles

13.1 Stall Types

13.1.1 Assigned Covered Stalls

Each apartment has **one (1) assigned covered parking stall**, which is a limited common element appurtenant to that apartment as shown in the Declaration and its recorded exhibits. Only the owner and occupants of that apartment, and their guests with permission, may use it. [Decl Exhibit C as amended 2001; Prior HR B.1, G.2]

Required by: Decl §5.2(a), §4.3(b); Exhibit C (1st Amend. 2001)

13.1.2 Uncovered Stalls

Uncovered stalls throughout the Project are **unassigned** and available to owners, occupants, and guests on a first-come, first-served basis. Uncovered stalls are not appurtenant to any apartment and may not be reserved, marked, or treated as private. [Prior HR G.5]

[Board to review: owners are commonly understood to have the use of a second, uncovered stall. Nothing in the Declaration, its recorded exhibits, or the prior House Rules allocates uncovered stalls to individual apartments. If the Board intends a per-apartment uncovered allocation, that should be confirmed against the Declaration and the recorded parking exhibit before adoption, since allocating exclusive use of a common element may require action beyond a House Rule.]

Required by: Bylaws §8.7(f)(v)

13.2 Vehicle Registration

Every vehicle regularly parked at the Project must be registered with the Resident Manager or Managing Agent, stating make, model, color, and license number. Vehicles must display current registration and safety inspection and be in operable condition. The Board may require a decal or hangtag. [Prior HR G.1]

13.3 Use of Another's Stall

No person may use a covered stall appurtenant to another apartment without that owner's prior written permission, a copy of which must be filed with the Resident Manager. [Prior HR G.2]

13.4 Parking Only in Marked Stalls

Vehicles may be parked only in marked stalls. Parking on roadways, driveways, shoulders, landscaped areas, or anywhere not marked as a stall is prohibited, except for active loading and unloading not exceeding thirty (30) minutes. [Prior HR G.3, G.5; AI recommended (resolves the prior conflict permitting shoulder parking while requiring marked stalls)]

AI-added: resolves the prior conflict permitting shoulder parking while requiring marked stalls

13.5 Prohibited Vehicles

Boats, boat trailers, utility trailers, jet skis, recreational vehicles, campers, commercial vehicles displaying commercial signage, and trucks larger than a standard pickup may not be parked at the Project without

prior written Board approval. [Prior HR G.1]

13.6 Guest Parking

Guests must use unassigned uncovered stalls. No guest vehicle may remain at the Project longer than **fourteen (14) consecutive days** without the Resident Manager's written approval. Owners and occupants may not use guest parking for long-term storage of a vehicle. [Prior HR G.5; AI recommended (time limit)]

AI-added: time limit

13.7 Abandoned and Inoperable Vehicles

A vehicle that is inoperable, unregistered, or has not moved in thirty (30) days may be treated as abandoned. [AI recommended]

13.8 Towing

After written notice to the owner or occupant, or after seventy-two (72) hours' notice affixed to the vehicle where the responsible person is unknown, the Association may tow any vehicle parked in violation of these House Rules, at the vehicle owner's sole risk and expense, in accordance with HRS Chapter 290 and applicable county requirements. Vehicles blocking access, a fire lane, a driveway, or another owner's assigned stall may be towed immediately without prior notice. The Board will designate the towing company and post signage as required by law. [AI recommended — the prior rules contained no towing provision; HRS Ch. 290]

AI-added: the prior rules contained no towing provision; HRS Ch. 290

Required by: HRS §290-11(a),(b)(3)

13.9 Repairs and Washing

No vehicle repairs, maintenance, fluid changes, or washing may be performed at the Project, except minor repairs necessary to make a vehicle operable enough to be removed. A drip pan must be used under any vehicle that leaks, and the responsible owner must clean any stain. [Prior HR G.6; AI recommended (drip pan, washing)]

AI-added: drip pan, washing

13.10 Stall Condition and Storage

Owners are responsible for the cleanliness of their assigned stall. No personal property — including lumber, furniture, crates, bicycles, surfboards, and storage containers — may be kept in a parking stall. [Prior HR G.7]

13.11 Speed and Safety

The posted speed limit must be observed. Racing engines, squealing tires, and excessive noise are prohibited. Pedestrians have the right of way. [Prior HR G.8]

13.12 Electric Vehicle Charging

13.12.1 Right to Install

Consistent with HRS §§ 514B-140 and 196-7.5, the Board will not unreasonably restrict the installation of an electric vehicle charging system in a stall an owner owns or has exclusive use of. [HRS §§514B-140, 196-7.5 — the prior rules were silent]

Required by: HRS §196-7.5(a),(b)

Citation flag — tag cites HRS §514B-140 — that section has no EV provision; the authority is HRS §196-7.5

13.12.2 Application

An owner must apply in writing under Section 18.1 (Board Approval Required) before installation. The application must include equipment specifications, the proposed electrical route, the licensed contractor, and evidence of insurance. [AI recommended]

Required by: HRS §196-7.5(c)(3)(A)–(C)

13.12.3 Owner Responsibility

The installing owner is responsible, at the owner's expense, for installation, separate metering or reimbursement of electricity consumed, maintenance, repair, insurance, damage to common elements, and removal and restoration if required. These obligations run with the apartment and bind successors. [AI recommended]

Required by: HRS §196-7.5(d)(1),(2)

13.12.4 Extension Cords

Charging by extension cord or any temporary conductor run from an apartment or across a common element is prohibited. [AI recommended]

13.13 Solar Energy Devices

Consistent with HRS § 196-7, the Association will not prohibit installation of a solar energy device on an area of an owner's exclusive use or control, subject to reasonable restrictions on placement and appearance imposed under Section 18.1 (Board Approval Required) that do not materially impair the device's efficiency or materially increase its cost. [HRS §196-7 — the prior rules were silent]

Required by: HRS §514B-140(c)(1); HRS §196-7(b)

OVERLAP vs UMP 2.2 — UMP defers the Bylaws §8.3(e) solar conflict; this rule states the operative position

Citation flag — tag cites HRS §196-7(a) — that subsection reaches only single-family and townhouse; multi-family is §196-7(b) with HRS §514B-140(c)(1)

14 Deliveries & Moving

14.1 Protective Pads Required

Protective elevator pads must be used for every move and for the delivery of any bulky item. Pads and floor coverings are available from the Resident Manager and must be arranged in advance. Corridors, walkways, and landscaping must be protected and left clean. [Prior HR D.11; Robert Sutor Recommended]

AI-added

14.2 Scheduling

Moves and deliveries of bulky items must be scheduled with the Resident Manager at least **three (3) business days** in advance. [AI recommended]

14.3 Permitted Times

Moves and bulky deliveries may occur **Monday through Saturday, 8:00 a.m. to 5:00 p.m.** No moves on Sundays or State or federal holidays. [AI recommended]

14.4 Workers and Delivery Vehicles

Workers and delivery persons must use the occupant's assigned stall or a designated loading area unless the Resident Manager or Managing Agent approves otherwise in advance. [Prior HR G.4]

14.5 Parcel Delivery

The Association is not responsible for packages delivered to the Project. Packages may not be left in walkways or common areas. [Prior HR E.15]

14.6 Damage and Debris

Damage to common elements during a move or delivery is charged to the owner under Section 20.2 (Owner Liability for Damage). Moving materials and packaging must be removed by the owner and may not be placed in Association receptacles. [Prior HR F.11; AI recommended]

AI-added

15 Trash & Recycling

15.1 Disposal

All refuse must be bagged, securely closed, and placed in designated receptacles. Refuse may not be left outside apartment doors, in walkways, stairwells, or any common element. [Prior HR D.9]

15.2 Recycling

Owners and occupants must comply with any recycling program adopted by the Board and with Maui County requirements, including separation of recyclables and breakdown of cardboard. [Prior HR D.9; AI recommended (county requirements)]

AI-added: county requirements

15.3 Bulky and Special Waste

Furniture, appliances, mattresses, electronic waste, batteries, paint, chemicals, and other hazardous or bulky items may not be placed in Association receptacles. Owners are responsible for lawful disposal at their own expense and must coordinate with the Resident Manager. [AI recommended]

15.4 Construction Debris

Construction debris must be removed from the Project by the owner or contractor at the owner's expense and may not be placed in Association receptacles. See Section 18.6 (Debris). [Prior HR Maintenance ¶6 [verify]]

REDUNDANT vs HR 18.6 — INTERNAL: duplicates 18.6 verbatim — collapse to a pointer

16 Support Animals

16.1 No Pets

No livestock, poultry, rabbits, dogs, cats, or other animals of any kind are permitted at the Project, except fish and other aquarium animals kept within an apartment. [Prior HR H.1; Bylaws §10.7(a) as amended 2019]

Required by: Bylaws §10.7(a) (2019 Amend.)

REDUNDANT vs UMP 4.3(3) — UMP restates the animal ban for contractors

16.2 Support Animals Permitted

Notwithstanding Section 16.1 (No Pets), **Support Animals** as defined in Section 2.1 (Defined Terms) are permitted as a reasonable accommodation in accordance with the federal Fair Housing Act, HRS Chapter 515, and Hawaii Administrative Rules § 12-46-306. A Support Animal is not a pet and is not subject to any pet prohibition, fee, or deposit. [Prior HR H.1; Bylaws §10.7(b); HAR §12-46-306; HRS Ch. 515; 42 U.S.C. §3604(f)]

Required by: HAR §12-46-306; Bylaws §10.7(b) (2019 Amend.)

16.3 Support Animal Policy

Requests for a Support Animal, the information the Association may require, the approval process, and the conduct rules applicable to Support Animals are governed by the **Support Animal Policy** adopted by the Board, which is incorporated into these House Rules by reference. Requests are made to the Resident Manager. Every person with a Support Animal at the Project must comply with that Policy. [Prior HR H.1; Robert Sutor Recommended]

AI-added

Required by: HRS §515-3(a)(9)

[Comment (SS): There should be a separate assistance animal policy that covers this. If the AOA does not have one, please let me know.]

[Comment (PS): We do not have a formal policy Assistance Animal Policy. We have informal procedures the Resident Agent follows. The Board needs to adopt a separate policy. The Board would like to develop the elements of such a policy. A Bilateral Reasonable Accommodation Agreement also should be created.]

16.4 Basic Conduct

Without limiting the Support Animal Policy, every Support Animal at the Project must be under the handler's control at all times, must not be left unattended, and must not create a nuisance under Section 5.1 (Nuisance). All animal waste must be collected immediately and disposed of properly. [Bylaws §10.7(b); AI recommended]

AI-added

Required by: Bylaws §10.7(b) (2019 Amend.); HAR §12-46-306(a)(1)

16.5 Liability and Indemnity

Neither the Board, the Association, the Managing Agent, nor the Resident Manager is liable for any loss, damage, or injury to persons or property caused by or arising in connection with any owner's, occupant's, or guest's animal. **The responsible owner indemnifies, defends, and holds harmless** the Association, the Board, the Managing Agent, and the Resident Manager against all claims, damages, and costs, including attorneys' fees, arising from the animal. [Prior HR H.6; Bylaws §10.7(c) — restores the indemnity the prior House Rule omitted]

Required by: Bylaws §10.7(c) (2019 Amend.)

17 Association Staff & Vendors

17.1 Scope of Employee Work

Association employees work on common elements and Association property. They may not be directed to perform work within an apartment or on a limited common element for an owner's private benefit. [Prior HR I.1, I.2]

OVERLAP vs UMP 10 — UMP extends the bar to Association equipment, tools, and facilities

17.2 Requests

All requests for maintenance or service go through the Resident Manager or Managing Agent. [Prior HR A.11, I.2]

17.3 No Interference

Owners, occupants, and guests must not interfere with, obstruct, or direct Association vendors and contractors performing work for the Association. [Prior HR I.3]

17.4 Respectful Treatment

Abusive, threatening, or harassing conduct toward an Association employee, Board member, or vendor is a violation subject to Section 20.3(f) (Fines). [AI recommended]

18 Renovations & Contractors

18.1 Board Approval Required

No addition, alteration, improvement, or modification to any common element or limited common element, and no work within an apartment affecting the structure, exterior appearance, plumbing stacks, electrical service, or any common element, may be undertaken without prior written Board approval.

[Prior HR Maintenance ¶1 [verify]; Bylaws §8.2]

Required by: Bylaws §8.3(a); HRS §514B-140

OVERLAP vs UMP 2.2 — UMP defines “Work” in detail and carves out tiling/cabinets

CONFLICT vs UMP 2.2 — material alterations also need 67% owner consent — HRS §514B-140(b); this rule implies Board approval alone suffices

Citation flag — tag cites Bylaws §8.2 (Maintenance and Repair of Common Elements) — alterations approval is §8.3(a)

18.2 Unit Modification Policy

Applications under Section 18.1 (Board Approval Required) are governed by the Association's Unit Modification Policy adopted December 28, 2020, which is incorporated by reference. The Policy states the application contents, review and inspection procedure, contractor requirements, and debris and staging rules that apply to approved work. Where the Policy and these House Rules differ, these House Rules govern under Section 1.6 (Precedence of Governing Documents). [Prior HR Maintenance ¶1 [verify];

Board minutes 12/28/2020]

[Comment (PS): A so-called Unit Modification Policy was adopted by the Board on 12/28/2020 per the Minutes. Do you have a copy? You worked with the Board on this policy when you worked at MSM. Perhaps a reference to that policy can be made here. The policy is more detailed.]

18.3 Licensed Contractor Required

Work with a total value exceeding **one thousand five hundred dollars (\$1,500)**, including labor and materials, must be performed by a Hawaii-licensed contractor. [Prior HR Maintenance ¶2 [verify]; HRS §444-2]

Required by: HRS §444-9; HRS §444-2(4)

OVERLAP vs UMP 4.1 — UMP adds the building-permit trigger and mandatory licensure for all electrical/plumbing work

18.4 Contractor Requirements

Before work begins, the owner must provide the Resident Manager with: the contractor's name, license number, and certificate of insurance; a description and schedule of the work; and any required county building permit. Contractors must sign in with the Resident Manager, park as directed under Section 13 (Parking & Vehicles), protect walkways and landscaping, contain dust and debris, and leave common areas clean daily. [AI recommended]

REDUNDANT vs UMP 4.2 — same license + certificate-of-insurance requirement

OVERLAP vs UMP 4.3(5) — UMP adds parking placard, dashboard display, RM-designated stalls

OVERLAP vs UMP 4.3 — UMP carries the full 14-item contractor conduct code

18.5 Work Hours

All construction, renovation, and repair work producing noise audible outside the apartment is permitted only:

Days	Hours
Monday through Friday	8:00 a.m. – 5:00 p.m.
Saturday	9:00 a.m. – 4:00 p.m.
Sundays and State and federal holidays	No work permitted

[Prior HR E.6 and Maintenance ¶7 [verify] — AI recommended: these two provisions conflicted (one permitted holiday work, the other barred it); this single schedule replaces both.]

AI-added: Prior HR E.6 and Maintenance ¶7 [verify] — : these two provisions conflicted (one permitted holiday work, the other barred it)

CONFLICT vs UMP 5 — UMP permits Sat/holiday 9–4 per ADOPTED HR §5.6; this rule bars all holiday work — UMP must be conformed on adoption

OVERLAP vs UMP 5 — UMP adds an RM waiver and an emergency exception this rule omits

[Comment (PS): Can this language be improved? It seems to suggest work can be done on holidays.]

18.6 Debris

Construction debris must be removed from the Project by the owner or contractor at the owner's expense and may not be placed in Association receptacles. [Prior HR Maintenance ¶6 [verify]]

CONFLICT vs UMP 6.3 — absolute bar here; UMP allows small amounts by RM approval

REDUNDANT vs UMP 4.3(6), 6.2 — haul-off obligation stated in three places across the two documents

REDUNDANT vs HR 15.4 — INTERNAL: 15.4 duplicates this provision verbatim

18.7 Water Shut-Off Coordination

Any work requiring shut-off of water serving more than the owner's apartment must be scheduled with the Resident Manager at least three (3) business days in advance so that affected residents can be notified. [AI recommended]

CONFLICT vs UMP 7 — 3 business days here vs 48 hours in UMP

18.8 Completion and Inspection

Work must proceed continuously to completion. The Resident Manager may inspect common element areas affected by the work on completion, and the owner is responsible for restoring any damage. [AI recommended]

OVERLAP vs UMP 3.3 — UMP allows inspection during the work by Board or designee, not only on completion

18.9 Unpermitted Work

Work performed without required Board approval or county permit must be removed and the area restored at the owner's expense, in addition to any fine. [AI recommended]

OVERLAP vs UMP 3.1(b), 4.1 — UMP adds the disclaimer of any Association code-enforcement role

19 Insurance & Water Damage Prevention

19.1 Owner Insurance

Each owner must maintain a condominium unit-owner (HO-6) policy covering the apartment's interior, improvements and betterments, personal property, personal liability, and loss assessment, in amounts not less than those the Board specifies from time to time. Owners must provide evidence of coverage on request. [AI recommended — the prior rules contained no owner-insurance requirement]

Required by: Decl §5.4

19.2 Master Policy Deductible

Where a loss originates within an apartment or its limited common elements, the applicable master policy deductible is charged to that apartment's owner to the extent permitted by the Declaration, the Bylaws, and the Act. [AI recommended; Decl ¶12]

AI-added

Required by: Decl §12.7; §12.1

Citation flag — a blanket “deductible charged to that apartment’s owner” exceeds Decl §12.1 (deductible a common expense) and §12.7 (owner chargeable only for negligent or intentional acts)

19.3 Water Supply Lines

Owners must maintain water supply lines in good condition. **Braided stainless steel supply lines are required** for washing machines, dishwashers, icemakers, toilets, and sinks. Rubber or plastic supply hoses must be replaced. Supply lines and hoses must be replaced at intervals not exceeding **five (5) years**. [AI recommended]

19.4 Water Heaters

Water heaters more than **twelve (12) years** old must be replaced. Water heaters must be installed in a drain pan plumbed to an approved drain or fitted with an approved leak-shutoff device. [AI recommended]

19.5 Extended Absence

An occupant leaving an apartment unoccupied for **seven (7) or more consecutive days** must shut off the water at the apartment's control valve. Association employees will not turn an apartment's water on or off; owners must use their on-island representative under Section 3.6 (Absent Owners; On-Island Representative). [Prior HR C.7]

REDUNDANT vs UMP 7 — same rule on who may operate the valve

19.6 Reporting Leaks

Any leak, water intrusion, or moisture damage must be reported to the Resident Manager **immediately** upon discovery. Delay in reporting that increases the loss may be charged to the responsible owner. [AI recommended]

19.7 Access for Investigation

Owners must permit access under Section 8.2 (Access to Apartments) for investigation and repair of a suspected leak. Refusal or delay that increases the loss may be charged to the owner. [AI recommended]

Required by: Bylaws §10.1

20 If a Rule Is Broken

20.1 Remedies

In addition to fines, the Association may: send a cease-and-desist notice; require the owner to cause the violator to comply; levy fines against an owner or tenant; commence eviction proceedings against a violating tenant or occupant as permitted by law; enter an apartment or limited common element to abate and remove a condition in violation, at the owner's expense; suspend amenity privileges as permitted by law; and recover all fees and costs, including attorneys' fees and professional consulting fees. [Prior HR J.1; HRS §514B-104]

Required by: HRS §514B-104(b)(3),(c); Bylaws §6.5

20.2 Owner Liability for Damage

An owner is liable for the cost of repairing, replacing, or restoring damage to common or limited common elements caused or contributed to by the owner or anyone present at the owner's invitation or authority. Damage is assessed by the Resident Manager and the cost determined by the Board. [Prior HR J.2]

Required by: Bylaws §2.3; §2.4

REDUNDANT vs UMP 8 — same rule; UMP adds the Decl §12.7 subrogation-waiver cap, absent here

20.3 Fines

Fining authority rests with the Board. A written notice stating the violation, the rule violated, and the fine amount is sent to the owner at the address on file under Section 1.12 (Owner Contact Information).

Step	Trigger	Consequence
(a)	First violation	Written warning; fourteen (14) days to correct, unless the Board sets a shorter or longer period for cause
(b)	Not corrected 14 days after (a)	Second notice; \$50
(c)	Not corrected 14 days after (b)	Third notice; \$100
(d)	Continuing violation after (c)	\$250 per day , to a maximum of \$5,000 per violation
(e)	Recurring violation	Each recurrence may be treated as a separate violation or as continuing
(f)	Damage to property, threat to health or safety, harassment, or illegal conduct	\$1,000 , assessable immediately upon written notice without the (a)–(d) sequence
(g)	Violation of Section 3.3 (Minimum Rental Period; No Timesharing)	\$1,000 per occupancy, plus \$250 per day for each day the occupancy continues

[Prior HR J.3; AI recommended (rows (f) clarified, (g) added)]

AI-added: rows (f)

Required by: HRS §514B-104(a)(11); Bylaws §6.1(o)

REDUNDANT vs UMP 12 — UMP restates the full fine schedule; replace with a cross-reference so amounts cannot drift

[Comment (PS): The NHOM Board adopted a Fines Policy in April 2017. Are you suggesting the policy be repeated in this doc, or can we leave it out as we have with all of the other lengthy policies adopted by the Board?]

[Comment (SS): I suggest that the fine policy be incorporated in these House rules rather than have a stand alone policy.]

[Comment (PS): Noted. See PAR comment below.]

[Comment (PS): Replace these provisions with the provisions of the 2017 Fines Policy adopted by the Board.]

20.4 Notice and Opportunity to Be Heard

Before a fine becomes final, the owner is entitled to written notice stating the basis for the fine and an opportunity to be heard by the Board. An owner requesting a hearing must do so in writing within **twenty (20) days** after the date of the notice. The Board will hear the matter in executive session to protect the owner's privacy, will permit the owner to present evidence and to question adverse witnesses, and will issue a written decision within thirty (30) days of the hearing. [Prior HR J.5; AI recommended — the prior rules provided a hearing only on appeal, not before a fine was imposed]

AI-added: the prior rules provided a hearing only on appeal, not before a fine was imposed

Required by: HRS §514B-104(a)(11); §514B-104(b)(2)

REDUNDANT vs UMP 12 — same appeal and mediation rights

20.5 Payment

A fine is payable within **thirty (30) days** after it becomes final. A timely request for hearing under Section 20.4 (Notice and Opportunity to Be Heard) suspends the obligation to pay until the Board issues its decision, but does not by itself suspend accrual of a daily fine under Section 20.3(d) (Fines), which the Board may waive in whole or in part for good cause. [Prior HR J.4; AI recommended (resolves the prior 20-day/30-day timing conflict)]

AI-added: resolves the prior 20-day/30-day timing conflict

20.6 Collection

Fines, late fees, and enforcement costs are the personal obligation of the owner and are collectible as permitted by law. **Nothing in these House Rules characterizes a fine as a common expense assessment**, and the Association's lien rights are limited to those provided by HRS § 514B-146. [HRS §514B-146 — corrects the prior HR §11.4 "deemed a common expense" characterization]

[Board to review: the April 2017 Fines Policy adopted by the Board is not in the Association's document set as assembled. Counsel has recommended it be integrated here. Section 20 should be reconciled against that Policy before adoption.]

Required by: HRS §514B-146(l); §514B-146

REDUNDANT vs UMP 12 — same no-lien-for-fines rule

20.7 Records Requests

An owner may inspect and copy Association records as provided by HRS §§ 514B-154 and 514B-154.5. Requests are made in writing to the Managing Agent, which will respond within the time the Act requires. The Association may charge the actual cost of copying and the preparation cost the Act permits. [HRS §§514B-154, 514B-154.5 — the prior rules were silent]

Required by: HRS §514B-154.5(c); §514B-154

20.8 Dispute Resolution

An owner contesting a fine, late fee, lien filing fee, attorneys' fees, or other charge, other than a common expense assessment, may demand mediation in writing as provided by the Act. Nothing in this section limits the rights of any party under HRS §§ 514B-161 and 514B-162. [Prior HR J.5(d); HRS §§514B-161, 514B-162]

Required by: HRS §514B-146(g); §514B-161(a)

REDUNDANT vs UMP 12 — same mediation right

21 General Provisions

21.1 Severability

If any provision of these House Rules is held invalid or unenforceable, the remaining provisions remain in full force. [AI recommended]

21.2 Conflict

Any provision inconsistent with applicable law, the Declaration, or the Bylaws is deemed modified to the extent necessary to conform, and otherwise severed. [AI recommended]

Required by: Decl ¶18 (2007 Amend. ¶19); Bylaws §2.5

21.3 Waiver

The Association's failure to enforce any provision on any occasion is not a waiver of its right to enforce that or any other provision thereafter. [AI recommended]

21.4 Supersession and Effective Date

These House Rules supersede and replace in their entirety all prior Rules and Regulations of the Association, including the House Rules dated April 29, 2026, and the Rules and Regulations revised September 14, 2017. They take effect on the date adopted by the Board. [AI recommended — the prior rules had no supersession clause]

22 Certificate

Adopted by resolution of the Board of Directors of the Association of Apartment Owners of Na Hale O Makena at a duly noticed meeting held on _____, 2026, at which a quorum was present.

President

Secretary